



CHAPTER 72.

An Act to make further provision for fire services in Great Britain and for purposes connected therewith. A.D. 1938.
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[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Fire Authorities.

1.—(1) The council of every county borough and of every county district (hereinafter referred to as a "fire authority") shall make provision for the extinction of fires and the protection of life and property in case of fire by securing— Provision
of fire
services.

- (a) the services for their borough or district of such a fire brigade and of such fire engines, appliances and equipment as may be necessary to meet efficiently all normal requirements;
- (b) the efficient training of the members of the fire brigade;
- (c) efficient arrangements for enabling persons to call the fire brigade in case of fire, for summoning the members of the fire brigade and for manning the fire engines; and
- (d) efficient arrangements for obtaining, by inspection or otherwise, information required for the

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purposes of the fire brigade with respect to the character of the buildings and other property in the borough or district, the available water supplies and the means of access thereto, and other material local circumstances,

and the services secured for a borough or district under this subsection are in this Act referred to as "local fire services."

(2) The Secretary of State may by order prescribe standards of efficiency with respect to any of the matters mentioned in the foregoing subsection, and the standards may vary according to the requirements of, and facilities available in, different kinds of locality, and any fire authority whose local fire services are of a standard so prescribed shall, as respects the matter for which the standard is prescribed, be deemed to have complied with the provisions of the foregoing subsection.

(3) A fire authority may secure local fire services for their borough or district by themselves providing and maintaining, either wholly or in part, such fire services or by entering into arrangements for the provision and maintenance, either wholly or in part, of such fire services by other fire authorities or persons.

(4) An officer of a fire authority, authorised in writing by the authority, shall, for the purpose of carrying out such arrangements as are mentioned in paragraph (d) of subsection (1) of this section, have the like powers of entering premises as are conferred upon authorised officers of councils by section two hundred and eighty-seven of the Public Health Act, 1936, and accordingly that section shall have effect as if the references to an authorised officer of a council included references to an officer of a fire authority authorised as aforesaid, and as if among the purposes specified in subsection (1) of that section there were included the aforesaid purpose.

26 Geo. 5. &
1 Edw. 8.
c. 49.

(5) Every fire authority shall, so far as practicable, enter into arrangements with other fire authorities and persons who maintain fire brigades to secure the provision of assistance by those authorities and persons for the purpose of dealing with fires occurring in the borough or district of the first named authority which cannot adequately be dealt with by the local fire services, and the Secretary of State may by order prescribe scales of

payments to be made, unless otherwise agreed, by the authority receiving the assistance provided in accordance with such arrangements. A.D. 1938.
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(6) The powers of a fire authority shall include power—

- (a) to provide accommodation for any fire brigade, fire engines, appliances or equipment serving their borough or district, including housing and other accommodation for members of any such fire brigade and furniture reasonably required for such accommodation;
- (b) to purchase compulsorily by means of an order made by the authority and confirmed by the Minister of Health any land required for the purposes of their functions under this Act;
- (c) to pay to any persons who render services in connection with the extinction of fires and the protection of life and property in case of fire such rewards as they think fit, which in the case of members of a fire brigade may be in addition to their remuneration;
- (d) to employ a fire brigade maintained by them, or use any fire engine, appliance or equipment so maintained, outside their borough or district; and
- (e) to make payments in respect of any fire services provided for their borough or district by another fire authority or by any other person.

(7) Where a fire authority, who are the council of a borough having a separate police force, delegate to the watch committee their functions under this Act, the watch committee may employ the chief officer of police, an assistant chief constable or the deputy chief constable on administrative duties in connection with a fire brigade maintained by that authority and may employ other constables as members of the brigade :

Provided that, as from the expiration of a period of five years from the passing of this Act, no such other constables shall be employed as part-time members of a fire brigade.

(8) A fire authority may provide and maintain fire alarms in such positions in any street or public place

A.D. 1938. — as they think proper, after consultation with the chief officer of police for the police area in which the fire alarms are to be placed, and any such fire alarm may be affixed to any wall or fence adjoining a street or public place :

Provided that—

(a) a fire authority before exercising the powers conferred by this subsection in relation to any trunk road shall consult with the Minister of Transport, and, before exercising those powers in relation to any county road maintained by a county council, shall consult with the county council, and the said powers shall not be so exercised as to obstruct or render less convenient the access to or exit from any station or goods yard belonging to a railway company, or any premises belonging to other statutory undertakers and used for the purposes of their undertaking ;

(b) nothing in this subsection shall affect any privilege conferred on the Postmaster-General by the Telegraph Act, 1869.

**32 & 33 Vict.
c. 73.**

**Fire-
hydrants
and water
supply in
case of
fire.**

2.—(1) Every fire authority shall provide and maintain, or cause to be provided and maintained, such fire-hydrants as are necessary for securing the best practicable use of the available supply of water in case of fire, and the situation of every such hydrant shall be plainly indicated by a notice or distinguishing mark which may be placed on any wall or fence adjoining a street or public place.

**10 & 11 Vict.
c. 17.**

(2) The provisions of sections thirty-eight, thirty-nine, forty and forty-three of the Waterworks Clauses Act, 1847, (which require undertakers to provide and maintain fire-hydrants) as incorporated with or applied by any enactment, with or without modifications, shall have effect as if for the references to the town commissioners there were substituted references to the fire authority :

Provided that the Minister of Health may by order modify the provisions of the said section thirty-eight, in their application to any rural district, so as to extend the distances at which fire-hydrants are required to be placed under that section.

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(3) Where any fire-hydrant which is being maintained at the expense of a fire authority under section forty of the Waterworks Clauses Act, 1847, is damaged as the result of any person using the hydrant (otherwise than for fire brigade purposes) with the authority of the water company or person to whom the hydrant belongs, the fire authority shall not be liable for the cost of repairing or replacing the hydrant incurred as the result of the damage.

(4) Any person who uses a fire-hydrant, otherwise than for the purpose of extinguishing fires or for any fire brigade purpose or any purpose authorised by the water company or person to whom the fire-hydrant belongs, or damages or obstructs any fire-hydrant, otherwise than in consequence of its use for such a purpose as aforesaid, shall be liable on summary conviction to a fine not exceeding ten pounds.

(5) At least seven days before any fire-hydrant is placed in any street, the fire authority shall give notice in writing to the authority or person by whom the street is maintained, and at least seven days before any works which affect any fire-hydrant are commenced, the authority or person by whom the works are to be executed shall give notice in writing to the fire authority.

(6) A fire authority may enter into agreements with any water company or person for securing the provision for their borough or district of an adequate supply of water in case of fire.

(7) A fire authority may use for the purpose of extinguishing fires any convenient or suitable supply of water, but shall be liable to pay reasonable compensation therefor :

Provided that nothing in this subsection shall affect the duty of undertakers to whom section forty-two of the Waterworks Clauses Act, 1847, applies, to supply water for the said purpose without compensation.

(8) Every council who are a fire authority shall take such steps within the powers of the council as are reasonable and practicable to improve the access to or otherwise to facilitate the use of any water supply (other than a water supply available for use by means of fire hydrants) which may be required for the purpose of extinguishing fires.

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Power of
fire autho-
rity to
require
proposed
water
works to be
constructed
in manner
specified
by them.

3.—(1) Where a person proposes to carry out any works for the purpose of supplying water to any part of the borough or district of a fire authority, he shall, not less than fourteen days before the works are commenced, give notice in writing thereof to the authority and the authority may, within fourteen days of the receipt of the notice, give a notice in writing to that person requiring him to carry out the works in such a manner as regards material, size and situation of pipes, pressure of water, provision for storage of water and otherwise as may be specified by the authority for the purpose of securing the best practicable supply of water in case of fire, and it shall be his duty to comply with the requirements of the fire authority :

Provided that, if he is aggrieved by the requirements of the authority, he may, within twenty-eight days of the receipt of the notice from the fire authority, appeal to the Minister of Health who may either disallow the requirements or allow them with or without modification.

(2) A fire authority who exercise the powers conferred upon them by this section shall repay to the person carrying out the works the extra expenses reasonably incurred by him in complying with their requirements and shall also from time to time repay to him so much of any expenses reasonably incurred by him in repairing or maintaining the works as may be attributable to their requirements having been made and complied with, and, if any question arises as to the amount of any payment to be made to him under this subsection, that question shall in default of agreement be determined by an arbitrator appointed by the Minister of Health and the decision of the arbitrator shall be final.

(3) If any person who under this section has been required by a fire authority to carry out works in a particular manner carries them out otherwise than in accordance with the requirements of the authority, he shall, without prejudice to the right of the authority to avail themselves of any other remedy, be liable on summary conviction to a fine not exceeding fifty pounds, and the court may, in addition to inflicting a fine, order him within the time specified in the order to take such steps as may be so specified for remedying the matters in respect of which he was convicted, and if he fails to comply with the order he shall be liable on

summary conviction to a fine not exceeding five pounds for each day on which the default continues. A.D. 1938.

4. The expenses of a rural district council under sections two and three of this Act shall, notwithstanding anything in any enactment or statutory order, be general expenses of the council.

Expenses of rural district council in connection with fire hydrants and water supply.

5. A fire authority shall not be entitled to require the owners or occupiers of property on which fires occur to make any payment in respect of local fire services or any fire services provided in pursuance of arrangements made under subsection (5) of section one of this Act or in pursuance of a scheme made under this Act, and all enactments under which fire authorities may require payments to be made by the owners or occupiers of property on which fires occur in respect of the expenses of a fire brigade in attending the fires shall cease to have effect :

No payments to be made by owners and occupiers in respect of certain fire services.

Provided that this section, so far as it relates to the powers of fire authorities under any enactment mentioned in Part II of the Third Schedule to this Act or under any enactment incorporating or applying with or without modifications section thirty-three of the Town Police Clauses Act, 1847, to require payments in respect of the expenses of fire brigades in attending fires outside the borough or district of the authority by whom the brigade is maintained, shall not come into operation until the expiration of a period of two years from the passing of this Act.

10 & 11 Vict. c. 89.

6.—(1) As from the expiration of a period of six months from the passing of this Act, the functions of parish councils, of parish meetings and of inspectors appointed for the purposes of the Lighting and Watching Act, 1833, (hereinafter referred to as "parish authorities") in connection with the extinction of fires and the protection of life and property in case of fire in any parish, shall cease to be exercisable by them, and all rights and property vested in, and all liabilities incurred by, any parish authority for the purposes of those functions shall by virtue of this section be transferred to the fire authority for the district in which the parish is situated :

Cessation of functions and transfer of property of parish authorities. 3 & 4 Will. 4. c. 90.

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Provided that the Secretary of State may by order postpone the operation of this subsection, in relation to any parish, to such date as may be specified in the order.

(2) A fire authority to whom property rights and liabilities are transferred from a parish authority under this section shall, if the value of the property and rights is more than sufficient to defray the liabilities, pay to the parish authority such sum as may be agreed upon or, in default of agreement, may be determined by arbitration under this section, and any capital sum so paid shall be treated as capital, and applied with the consent of the Minister of Health and subject to any conditions which he may impose either in the payment of debt or for any other purpose for which capital money may properly be applied :

Provided that any such sum may, with the consent of the parish authority, be held by the fire authority and applied by them, subject to and in accordance with the foregoing provisions with respect to capital sums, for the benefit of the parish.

(3) All deeds, bonds and agreements made or entered into by a parish authority for the purposes of the functions aforesaid shall, so far as they relate to property, rights and liabilities transferred to a fire authority under this section, have effect as from the date of the transference with the substitution of the fire authority for the parish authority and may be enforced by or against the fire authority accordingly; and all proceedings relating to any such property, rights and liabilities, which are pending at the said date, may be carried on thereafter with the substitution of the fire authority as party to the proceedings in lieu of the parish authority.

(4) Any question as to the property, rights or liabilities transferred to, or as to the compensation to be paid by, a fire authority under this section shall be determined by an arbitrator appointed by the Secretary of State, and the decision of the arbitrator shall be final.

(5) The provisions of this section shall be without prejudice to the provisions of sections eighty-seven and eighty-eight of the Local Government Act, 1933, as to the delegation of the functions of a rural district council to a parochial committee or parish council.

7. On the date when the functions of any parish authority cease to be exercisable by that authority by virtue of the last foregoing section, any person who was, immediately before that date, employed by a parish authority for the purposes of those functions, shall be employed by the fire authority in whose district the parish is situated on the terms and conditions on which he was so employed immediately before that date, and any of his service in the brigade of the parish authority, which is approved service within the meaning of the Fire Brigade Pensions Act, 1925, shall be reckoned for the purposes of that Act as approved service in the brigade of the fire authority; and the provisions of subsections (2) (3) and (6) of section one hundred and fifty of the Local Government Act, 1933, and of the Fourth Schedule to that Act shall apply to persons transferred to employment by a fire authority under this section as they apply to officers transferred under a scheme or order made under the said section one hundred and fifty, with such adaptations as may be made by an order of the Secretary of State.

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Provisions
for transfer
and com-
pensation of
employees
of parish
authorities.

15 & 16
Geo. 5. c. 47.

Co-ordination of fire services.

8.—(1) A Commission shall be constituted under this Act, to be called "the Fire Service Commission," for the purpose of considering the arrangements made by fire authorities for the provision of assistance for the purpose of dealing with fires which cannot adequately be dealt with by the local fire services, and of reviewing generally the fire services provided by fire authorities under this Act, and of reporting to the Secretary of State on the matters aforesaid.

Appoint-
ment of
Fire Service
Commission
to report
on fire
services.

(2) The provisions of the First Schedule to this Act shall have effect with respect to the constitution and proceedings of the Fire Service Commission.

(3) The Fire Service Commission may, for the purposes of the exercise of their functions, hold such local inquiries as they think fit, and subsections (2) and (3) of section two hundred and ninety of the Local Government Act, 1933, shall apply to such inquiries.

9.—(1) If the Fire Service Commission report, as respects any fire authorities, that adequate arrangements have not been made for the provision of such assistance as aforesaid, they may submit to the Secretary of State

Schemes for
co-ordina-
tion of fire
services.

A.D. 1938. — a scheme (hereinafter referred to as a “co-ordination scheme”) for ensuring the provision by those authorities of such assistance :

Provided that, before submitting any co-ordination scheme to the Secretary of State, the Fire Service Commission shall give an opportunity to all fire authorities affected by the scheme and to any other persons appearing to the Commission to be specially concerned to make representations with respect thereto, and shall submit any such representations together with the scheme.

(2) A co-ordination scheme shall provide for the payments to be made by the fire authorities to whom the scheme applies in respect of assistance provided under the scheme, and, if the Secretary of State has by order prescribed scales for such payments, the scheme shall apply those scales with or without modifications, and the scheme may provide that the payments shall be made out of a common fund to which the fire authorities shall contribute in such proportions as may be specified in the scheme, and may make provision for the management of the fund, the enforcement of contributions thereto, and the auditing of the accounts of the fund by the district auditor.

(3) A co-ordination scheme may contain such provisions requiring uniformity of appliances and equipment as appear to the Fire Service Commission to be necessary for the purpose of ensuring that the fire brigades affected will be able to render efficient assistance in pursuance of the scheme.

(4) A co-ordination scheme shall come into operation when approved by the Secretary of State, either without modifications or after making such modifications therein as he thinks fit, and when a scheme has been so approved, it shall be the duty of the fire authorities to whom the scheme applies to carry it into effect, and any arrangements made under subsection (5) of section one of this Act which are not in conformity with the scheme shall cease to have effect.

(5) If at any time the Fire Service Commission, after consultation with the fire authorities affected, submit to the Secretary of State proposals for amending any co-ordination scheme, the Secretary of State may amend the scheme in accordance with the proposals, subject to any modifications which he may think fit.

10.—(1) Where any fire authority have requested another fire authority to provide the whole or any part of the local fire services for the borough or district of the first named fire authority, and the other fire authority are unwilling to provide such services, or the authorities cannot agree as to the extent of the services to be provided or the terms on which they are to be provided, the first named fire authority may make an application to the Fire Service Commission.

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Power of
Fire Service
Commission
to recom-
mend pro-
vision of
local fire
services for
any district
by another
fire
authority.

(2) If the Fire Service Commission, after giving an opportunity to the fire authorities concerned to make representations and, if they think fit or if any such fire authority requests them to do so, after holding a local inquiry, are satisfied that it is expedient, with a view to securing greater efficiency or economy, that the whole or any part of the local fire services for the borough or district of the applicant fire authority should be provided by the other fire authority, they may recommend to the Secretary of State that such local fire services shall be so provided on such terms as they may specify, and the Secretary of State may by order give effect to the recommendations, with or without modifications, and thereupon it shall be the duty of the fire authorities concerned to give effect to the order.

(3) The costs of the Fire Service Commission in holding a local inquiry for the purposes of this section shall be paid by such fire authority, or by such fire authorities in such proportions, as the Commission may direct, and the Commission may certify the amount of the said costs and, if they are to be paid by two or more authorities, the amounts to be paid by the several authorities, and any amount so certified and directed to be paid by a fire authority shall be recoverable from that authority as a debt to the Crown, or by the Secretary of State summarily as a civil debt.

11.—(1) If the Secretary of State is satisfied, at any time after the expiration of two years from the passing of this Act, after holding a local inquiry, that efficient fire services have not been provided or are not being maintained for any borough or district in accordance with section one of this Act, he may appoint a board, to be called "a fire service board," for such area as he may specify.

Fire service
boards.

A.D. 1938.

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(2) The provisions set out in the Second Schedule to this Act shall have effect with respect to the constitution, proceedings and dissolution of fire service boards.

(3) As from the date of the appointment of a fire service board, no arrangements shall be entered into under section one of this Act by the fire authorities of the boroughs or districts situated in the area for which the board was appointed without the approval of the fire service board.

Fire service
area
schemes.

12.—(1) Where a fire service board has been appointed for any area, the board shall prepare and submit to the Secretary of State a scheme (hereinafter referred to as “an area scheme”) for ensuring the provision and maintenance by the fire authorities under the general supervision of the board of efficient fire services throughout the area for which the board was appointed.

(2) An area scheme shall come into operation when approved by the Secretary of State, either without modifications, or after making such modifications therein as he thinks fit, and when a scheme has been so approved, it shall be the duty of the fire authorities in the area to carry it into effect and to exercise their functions under the foregoing provisions of this Act in accordance with the scheme, and any arrangements entered into by any such fire authorities under section one of this Act which are not in conformity with the scheme shall cease to have effect.

(3) If at any time the fire service board for any area, after consultation with the fire authorities in the area, submit to the Secretary of State proposals for amending the area scheme, the Secretary of State may amend the scheme in accordance with the proposals, subject to any modifications which he may think fit.

Default
powers of
fire service
boards.

13.—(1) If a complaint is made to the Secretary of State by a fire service board that any fire authority have failed in any respect to carry out the area scheme, the Secretary of State may cause a local inquiry to be held into the matter, and if he is satisfied after the inquiry that there has been such a failure on the part of the authority, he may make an order transferring to the fire service board such of the functions of the defaulting authority under this Act as may be specified in the order,

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and, while the order is in force, the fire service board shall discharge those functions in place of the authority, and in respect of those functions references in this Act to a fire authority shall, except where the context otherwise requires, be construed as including references to the fire service board.

(2) A fire service board to whom functions are transferred under the foregoing subsection may borrow money for the purpose of meeting any expenses incurred by them in the discharge of those functions, and Part IX of the Local Government Act, 1933 (which relates to borrowing by local authorities) shall apply, subject to such adaptations as may be made by the order transferring the functions, to fire service boards in like manner as they apply to local authorities.

(3) A fire service board shall have power to issue precepts to any fire authority, whose functions have been transferred to the board, requiring them, within a time limited by the precept, to pay such amounts as will in the opinion of the board be sufficient to defray expenses incurred or to be incurred in the discharge of functions so transferred, including payments, whether of principal or interest, in respect of any money borrowed under the last foregoing subsection; and any sum for which a precept has been issued under this section to a fire authority shall be a debt due from that authority to the fire service board, and may be recovered accordingly, without prejudice, however, to the right of the board to exercise any powers conferred upon precepting authorities by section thirteen of the Rating and Valuation Act, 1925.

15 & 16
Geo. 5. c. 90.

(4) Where functions have been transferred to a fire service board under this section, the accounts of the board shall be so kept as to show in a separate account such income and expenses of the board as are attributable to the exercise of functions so transferred, and if functions have been transferred to the board from two or more fire authorities, separate accounts shall be kept in respect of each authority.

(5) Where an order transferring functions to a fire service board is revoked, the functions shall again be exercisable by the authority from whom they were transferred, and the revoking order may provide for the transference to that authority, upon such terms as may

A.D. 1938. — be agreed or, in default of agreement, determined in accordance with the order, of any property rights and liabilities acquired or incurred by the board for the purpose of the exercise of those functions.

Miscellaneous.

Powers of
fire brigades
and police
in extin-
guishing
fires.

14.—(1) Any member of a fire brigade which provides local fire services under this Act being on duty, and any police constable, may enter and if necessary break into any premises or place in which a fire has or is reasonably supposed to have broken out, or any premises or place which it is necessary to enter for the purpose of extinguishing a fire, without the consent of the owner or occupier thereof, and may do all such acts and things as they may deem necessary for extinguishing fire or for protecting from fire any such premises or place or rescuing any person or property therein.

(2) Any person who wilfully obstructs or interferes with any member of a fire brigade engaged in operations for the extinction of a fire or the protection or rescue of any person or property from fire shall be liable on summary conviction to a fine not exceeding ten pounds.

(3) At any fire the senior officer present of the fire brigade maintained for the borough or district in which the fire originates, or, if any scheme or arrangement made under this Act provides that any other person shall have charge of the operations for the extinction of the fire, that other person, shall have the sole charge and control of all operations for the extinction of the fire including the fixing of the positions of fire engines and apparatus, the attaching of hose to any water pipes or the use of any water supply, and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed, and may require the water to be shut off from the mains and pipes in any area in order to give a greater supply and pressure of water for extinguishing the fire, and no authority, company, or person shall be liable to any penalty or claim by reason of the interruption of the supply of water occasioned only by compliance with such a requirement.

(4) The senior officer of police present at any fire may close for traffic any street or may stop or regulate the traffic in any street whenever in the opinion of that officer it is necessary or desirable to do so for the purpose of extinguishing fire or for the safety or protection of life or property.

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15. The Minister of Transport may by regulations provide that, in such cases and subject to such conditions as may be specified by the regulations, vehicles used for fire brigade purposes shall be exempt from the provisions of section eighteen of the Road Traffic Act, 1930 (which restricts the number of trailers to be drawn by motor vehicles); and the provisions of the said Act as to regulations made thereunder shall apply in like manner to regulations made under this section.

Power to exempt trailers used for fire services from traffic restrictions.
20 & 21
Geo. 5. c. 43.

16.—(1) Where any member of a fire brigade maintained by a fire authority under this Act, who has been a professional fireman or member of a police force, is wholly but not permanently employed on fire brigade duties and while so employed is incapacitated for the performance of his duty by infirmity of mind or body occasioned by an injury received in the execution of his duty without his own default, or dies from the effects of an injury received in, or disease resulting from, the execution of his duty without his own default, the like special pension to himself or pension to his widow and allowances or gratuities to his children or dependants shall be payable under the Fire Brigade Pensions Act, 1925, as would have been payable under that Act if he had been a professional fireman when incapacitated, but based on his current rate of pay and his service with the brigade since he last joined it.

Extension of Fire Brigade Pensions Act, 1925, to temporary firemen.

(2) Where any special pension is payable under the foregoing subsection in respect of a person to whom an ordinary pension is already payable under the Police Pensions Act, 1921, or the Fire Brigade Pensions Act, 1925, the special pension shall be payable in addition to his ordinary pension, but no increase shall be made in his ordinary pension in respect of service to which this section relates and the aggregate amount of the two pensions shall not exceed his annual pay at the date of his retirement on which the ordinary pension became payable.

11 & 12
Geo. 5. c. 31.

A.D. 1938.

(3) Where pensions, allowances, or gratuities are payable under any local Act to members of a fire brigade who have been wholly and permanently employed on fire brigade duties, the Secretary of State may direct that the provisions of this section shall apply with respect to that fire brigade with such modifications as he considers necessary.

Definition
of "fire
brigade
duties" for
purposes
of Fire
Brigade
Pensions
Act, 1925,
and this
Act.

17.—(1) For the purposes of the Fire Brigade Pensions Act, 1925, and this Act, the expression "fire brigade duties" includes any of the following duties, that is to say:—

- (a) duties carried out on the direction of the fire authority in connection with fire prevention;
- (b) duties in connection with the construction, repair or maintenance of any fire engines, or of any vehicles, appliances, or equipment used for fire brigade, ambulance or police purposes, or duties consisting of the driving or manning of ambulances; and
- (c) other duties ancillary to or connected with fire brigade purposes, being duties carried out on the direction of the fire authority.

(2) For the purposes of the said Fire Brigade Pensions Act, 1925, in its application to any member of a fire brigade maintained by a fire authority who is wholly and permanently employed on the said duties at the passing of this Act, not being a person to whom the next following subsection applies, the said expression shall be deemed to have had the said meaning during any period before the passing of this Act during which he was treated as subject to the said Fire Brigade Pensions Act, 1925, or any period during which the fire authority may in their discretion certify that he was wholly and permanently employed on the said duties.

(3) Where any person, who at the passing of this Act holds a post by virtue of which he is or is being treated as subject to the Local Government and other Officers' Superannuation Act, 1922 (hereinafter referred to as "the Act of 1922"), or to a local Act scheme, becomes by virtue of this section a professional fireman and would, if he did not exercise his option under this subsection, be subject to the Fire Brigade Pensions Act, 1925, the fire authority shall, as soon as may be after regulations have been made by the Minister of Health under

12 & 13
Geo. 5. c. 59.

the next following subsection give him written notice of the effect of this section, and if, within one month after receiving that notice, he gives written notice to the fire authority that he desires that the provisions of the Act of 1922 or of the local Act scheme, as the case may be, should continue to apply to him, the said provisions shall apply to him, and be deemed to have applied to him as from the passing of this Act, in lieu of the provisions of the Fire Brigade Pensions Act, 1925. A.D. 1938.

(4) If any such person as aforesaid does not give a written notice under the last foregoing subsection, the provisions of the Fire Brigade Pensions Act, 1925, shall apply to him and be deemed to have applied to him as from the passing of this Act, in lieu of the provisions of the Act of 1922 or of the local Act scheme, as the case may be, and—

(a) account shall be taken for the purposes of the Fire Brigade Pensions Act, 1925, in such manner as may be prescribed by regulations made by the Minister of Health, of his previous service with any local authority;

(b) a transfer value ascertained in accordance with the provisions of the Local Government Officers' Superannuation (Transfer Value) Rules, 1930, shall be paid out of the superannuation fund maintained under the Act of 1922, or under the local Act scheme, as the case may be, to the fire brigade pension fund or, if there is no such fund, to the general rate fund of the borough or district; and

(c) for the purposes of any return or application of his rateable deductions under section eighteen of the Fire Brigade Pensions Act, 1925, there shall be included in the aggregate amount of his rateable deductions so much of the said transfer value as represents contributions or additional contributory payments paid or made by him under the Act of 1922 or the local Act scheme.

(5) At the end of paragraph 2 of Part II of the First Schedule to the Local Government Superannuation Act, 1937 (which specifies persons who shall not become contributory employees or local Act contributors within the meaning of that Act), there shall be added the words

1 Edw. 8. &
1 Geo. 6.
c. 68.

A.D. 1938. — “not being a fireman who has given a written notice
“under subsection (2) of section twenty-four of the Fire
“Brigade Pensions Act, 1925, or under subsection (3) of
“section seventeen of the Fire Brigades Act, 1938”.

(6) Any person who at the passing of this Act is in the service of a local authority as respects whom the Act of 1922 is in operation, or of a local authority administering a local Act scheme, and is being treated as subject to the Fire Brigade Pensions Act, 1925, but is not a professional fireman, shall by virtue of this subsection—

- (a) be deemed to hold a post by virtue of which he is subject to the Act of 1922, or the local Act scheme, as the case may be; and
- (b) be entitled to reckon any period of service during which he was treated as subject to the Fire Brigade Pensions Act, 1925, as contributing service for the purposes of the Act of 1922, or the local Act scheme, as the case may be, and any deductions made from his pay during such a period shall be deemed to be contributions for all purposes of the Act of 1922 or the local Act scheme; and

the authority shall transfer from the fire brigade pension fund or, if there is no such fund, the general rate fund of the borough or district to the superannuation fund maintained under the Act of 1922, or the local Act scheme, as the case may be, an amount equal to twice the aggregate amount of the said deductions.

(7) All regulations made by the Minister of Health under this section shall be laid as soon as may be before Parliament, and if either House within the next twenty-eight days on which that House has sat after any regulation has been laid before it, resolves that the regulation be annulled, the regulation shall be of no effect, but without prejudice to the validity of anything done in the meantime thereunder or to the making of a new regulation.

(8) In this section the expression “additional contributory payment” has the same meaning as in the Local Government Superannuation Act, 1937, and the expression “local Act scheme” means a superannuation scheme administered by a local authority under a local Act.

18.—(1) The Secretary of State shall appoint a Council, to be called the Central Advisory Council for Fire Services, for the purpose of advising the Secretary of State on any question which may be referred by him to the Council with respect to any matter arising in connection with the operation of this Act.

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Central
Advisory
Council
for Fire
Services.

(2) The Secretary of State may, after consultation with such associations as represent fire authorities, by order make provision with respect to the constitution and proceedings of the Council.

19. The Secretary of State may, for the purpose of obtaining reports as to the manner in which this Act is carried out, appoint such inspectors and there shall be paid to them such remuneration as the Secretary of State may with the consent of the Treasury determine, and such remuneration shall be defrayed as part of the expenses of the Secretary of State incurred for the purposes of this Act.

Appoint-
ment of
inspectors.

20.—(1) The Secretary of State may establish a training centre for providing special courses of instruction for members of fire brigades, and the expenses incurred in connection with the training centre shall, to such amount as may be approved by the Treasury, be defrayed as part of the expenses of the Secretary of State incurred for the purposes of this Act.

Establish-
ment of
training
centre.

(2) The Secretary of State may approve training centres established by fire authorities for providing courses of instruction for members of their own or other fire brigades and for training persons for service in fire brigades.

21. Regulations made by the Secretary of State under section eleven of the Air-Raid Precautions Act, 1937, may provide for the use by fire authorities for the purposes of their functions under this Act of any equipment, appliances or material acquired by the Secretary of State on behalf of His Majesty under the said Air-Raid Precautions Act, 1937, and lent to those authorities for the purposes of that Act.

Loan to fire
authorities
of appliances
provided
under the
Air-Raid
Precautions
Act, 1937.
1 & 2 Geo. 6.
c. 6.

22. The Secretary of State may by order impose such requirements with respect to uniformity of appliances, equipment, and fire hydrants provided for the purposes of this Act as appear to him to be necessary

Power of
Secretary of
State to
require
uniformity

A.D. 1938. for securing efficient fire services and in particular the rendering of efficient mutual assistance by fire brigades, and it shall be the duty of fire authorities to comply with any such requirements.

—
of appli-
ances and
equipment.

Supplementary.

Notices.

23. Any notice required or authorised by this Act to be given to any person may be given either—

- (a) by delivering it to that person, or by leaving it or sending it in a prepaid letter addressed to him at his usual or last known residence; or
- (b) in the case of an incorporated company or body, by delivering it to their secretary or clerk at their registered or principal office, or by sending it in a prepaid letter addressed to him at that office.

Provisions
as to orders
of Secretary
of State.

24.—(1) Any order made by the Secretary of State under this Act may be varied or revoked by a subsequent order made in like manner as the original order.

(2) Before making any order prescribing scales of payments for fire services or any order requiring uniformity of appliances and equipment and fire hydrants, the Secretary of State shall consult the Central Advisory Council for Fire Services, and before making any order prescribing standards of efficiency for fire services, the Secretary of State shall consult with the said Council and with such associations representing fire authorities as appear to him to be concerned and with any fire authorities with whom consultation appears to him to be desirable.

(3) Any order made by the Secretary of State prescribing standards of efficiency for fire services and any order made by him requiring uniformity of appliances and equipment and fire hydrants shall be laid as soon as may be before Parliament, and if either House within the next twenty-eight days on which that House has sat after the order has been laid before it resolves that the order be annulled, the order shall be of no effect, but without prejudice to the validity of anything done in the meantime thereunder or to the making of a new order.

Power of
Secretary of
State to hold
inquiries.

25. The Secretary of State may hold a local inquiry into the manner in which any fire authority are performing their functions under this Act.

26. All expenses of the Secretary of State incurred for the purposes of this Act in the administration thereof, in the payment of remuneration or allowances to any person appointed thereunder, or in connection with the training centre established by him, and any expenses authorised by the Secretary of State with the consent of the Treasury to be incurred by the Fire Service Commission, by any fire service board or by any Central Advisory Council for Fire Services shall, except as is herein otherwise expressly provided, be defrayed out of moneys provided by Parliament.

A.D. 1938.

—
Expenses
of the
Secretary of
State, Fire
Service
Commission,
fire service
boards and
Central
Advisory
Council.

27.—(1) The provisions of subsections (3) to (7) of section two and the provisions of sections three, five, fifteen and twenty-one of this Act shall apply to the administrative county of London and the London County Council, and accordingly—

Provisions
as to
London.

(a) the references in those provisions to a fire authority and to the borough or district of a fire authority shall be construed as including references to the London County Council and the administrative county of London, respectively; and

(b) the reference in section twenty-one to this Act shall be construed as including a reference to the Metropolitan Fire Brigade Act, 1865:

28 & 29 Vict.
c. 90.

Provided that nothing in the said section five shall be taken to affect section sixty of the London County Council (General Powers) Act, 1934.

24 & 25
Geo. 5. c. xl.

(2) The provisions of section one of this Act, so far as they relate to the provision of fire services for any borough or district by other fire authorities, shall have effect so as to enable such fire services to be provided by the London County Council, and accordingly the references in subsections (3) and (5) of section one to other fire authorities and the references in subsection (4) thereof to a fire authority shall be construed as including references to the London County Council; and the duty of a fire authority (not including the London County Council) under subsection (5) of section one of this Act may be discharged, either in whole or in part, by entering into arrangements with the London County Council under section forty-nine of the London County Council (General Powers) Act, 1936.

26 Geo. 5. &
1 Edw. 8.
c. lx.

A.D. 1938.

(3) The London County Council shall have power to purchase compulsorily by means of an order made by the Council and confirmed by the Minister of Health any land required for the purposes of their functions under the Metropolitan Fire Brigade Act, 1865, and the provisions of sections one hundred and sixty-one, one hundred and sixty-two, one hundred and seventy-four, and one hundred and seventy-five of the Local Government Act, 1933, and of paragraphs (a) and (c) of section one hundred and seventy-nine of that Act shall apply with respect to any such order as if for the references to a local authority there were substituted references to the London County Council.

(4) The power of the London County Council under section thirty of the Metropolitan Fire Brigade Act, 1865, to permit any part of their fire brigade establishment to be employed on special services shall include a power to permit such employment without requiring any remuneration from the persons to whom the services are rendered.

(5) Save as is in this section provided, this Act shall not apply to the administrative county of London or to the London County Council.

Application
to Scotland.

28.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland.

(2) For any reference to the Minister of Health there shall be substituted a reference to the Secretary of State.

1 Edw. 8. &
1 Geo. 6.
cc. 68, 69.

(3) For any reference to the Local Government Superannuation Act, 1937, there shall be substituted a reference to the Local Government Superannuation (Scotland) Act, 1937; for any reference to the Local Government Officers' Superannuation (Transfer Value) Rules, 1930, there shall be substituted a reference to the Local Government Officers' Superannuation (Transfer Value) (Scotland) Rules, 1924; for any reference to a county borough or a borough there shall be substituted a reference to a burgh, for any reference to a county district there shall be substituted a reference to a county; for any reference to the general rate fund of a borough or district there shall be substituted a reference to the burgh or the county fund; and for any reference to

audit by a district auditor there shall be substituted a reference to audit by a person appointed by the Secretary of State. A.D. 1938.
—

(4) The Secretary of State may, after consultation with the county council of any of the following counties videlicet: Argyll, Caithness, Inverness, Orkney, Ross and Cromarty, Sutherland, Zetland, or with the town council of any burgh situated in any such county, by order direct that the provisions of this Act in their application to such county or burgh shall have effect as if—

(a) subsections (1) to (5) of section one and sections eight to thirteen were omitted; and

(b) the word “ may ” were substituted for the word “ shall ”—

(i) where that word first occurs in subsection (1) of section two; and

(ii) in subsection (8) of the said section.

(5) The council of any county or burgh to which an order under the last foregoing subsection applies may make such provision for the extinction of fires and the protection of life and property in case of fire as they may deem necessary and practicable, and for that purpose may either themselves provide and maintain fire services or enter into arrangements with other county and town councils or other persons to secure the provision and maintenance of such services.

The council of any such county as aforesaid may by resolution determine that the powers conferred by this subsection shall be exercised in respect of such part or parts only of the county as may be specified in the resolution.

(6) The expression “ street ” shall have the meaning assigned to it by the Public Health (Scotland) Act, 1897. 60 & 61 Vict.
c. 38.

(7) Subsection (4) of section one of this Act shall apply in like manner as if section two hundred and eighty-seven of the Public Health Act, 1936, applied to Scotland.

(8) Subsection (6) of section one of this Act shall have effect as if paragraph (b) were omitted.

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(9) For subsection (7) of section one of this Act, the following subsection shall be substituted—

“(7) A fire authority (being a county council or the town council of a burgh having a separate police force) may employ any constable holding the rank of inspector or any higher rank on administrative duties in connection with a fire brigade maintained by that authority and may employ any constable (other than the chief officer of police or an assistant or deputy chief constable) as a member of the fire brigade :

Provided that no such constable (other than as aforesaid) shall be employed—

(a) on administrative duties after the expiry of two years from the passing of this Act; or

(b) as a part-time member of a fire brigade unless he was so employed at the passing of this Act.”

55 & 56 Vict.
c. 55. In this subsection the expression “deputy chief constable” includes an officer of a police force appointed under section ninety of the Burgh Police (Scotland) Act, 1892, to act as a temporary substitute for the chief constable.

(10) Subsection (8) of section one of this Act shall have effect as if in the proviso—

19 & 20
Geo. 5. c. 25. (a) after the words “Minister of Transport, and” there were inserted the words “a fire authority
“(being the town council of a small burgh
“within the meaning of the Local Government
“(Scotland) Act, 1929)” ; and

(b) for the words “any county road” there were substituted the words “any road”.

(11) Subsection (2) of section two of this Act shall have effect as if for the words “rural district” there were substituted the words “county or part thereof”.

(12) Where in pursuance of this Act a local inquiry is held by the Secretary of State or by the Fire Service Commission in Scotland, subsections (2) and (3) of section two hundred and ninety of the Local Government Act, 1933, shall apply to such inquiry in like manner as if that Act applied to Scotland, with the substitution however of references to an order for references to a summons.

(13) Subsection (3) of section ten of this Act shall have effect as if the word " summarily " were omitted. A.D. 1938.
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(14) For subsection (2) of section thirteen of this Act the following subsection shall be substituted—

" (2) A fire service board to whom functions are transferred by an order under this section may, with the sanction of the Secretary of State and subject to such conditions as may be specified in the order, borrow money for the purpose of meeting any expenses incurred by them in the discharge of those functions."

(15) There shall be appointed a separate Central Advisory Council for Fire Services for Scotland, to be called the Scottish Central Advisory Council for Fire Services, and the provisions of this Act with regard to the Central Advisory Council for Fire Services shall apply to the said Scottish Council.

(16) Any expenditure incurred by a county council for the purposes of this Act shall be defrayed out of such rate payable by owners and occupiers in equal proportions as the council may determine, and any expenditure incurred by a town council for the purpose of this Act shall be defrayed out of the rate or assessment to which the expenses of a fire brigade would have been chargeable if this Act had not passed :

Provided that, where the county council of any county have resolved, in pursuance of subsection (5) of this section, that the powers thereby conferred shall be exercised in respect of one or more parts only of the county, the expenditure incurred by the county council for the purposes of this Act in respect of any such part shall be defrayed out of a rate levied only in that part.

(17) A county or town council shall have power to borrow money for any purpose of this Act to which capital is properly applicable, and the provisions of section twenty-three of the Local Government (Scotland) Act, 1929, shall apply to the power hereby conferred. Any sums borrowed in pursuance of this subsection shall be repaid within such period as the Secretary of State may fix. 19 & 20
Geo. 5. c. 25.

(18) A county or a town council shall have the like power to acquire land for the purposes of their powers

A.D. 1938. and duties under this Act as they have for the purposes
— of their powers and duties under the Air-Raid Precautions
1 & 2 Geo. 6. Act, 1937, and subsection (9) of section thirteen of that
o. 6. Act shall apply in relation to the power hereby conferred.

Interpreta-
tion.

29.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ Chief officer of police,” “ police area ” and “ police force ” have the same respective meanings as in the Police Pensions Act, 1921 ;

“ Enactment ” includes a local Act and a provisional order confirmed by an Act ;

“ Professional fireman ” has the same meaning as in the Fire Brigade Pensions Act, 1925 ;

“ Street,” “ railway company,” “ statutory undertakers,” and “ statutory order ” have the same respective meanings as in the Public Health Act, 1936.

(2) In relation to a rural district with respect to which there is in force such a direction as is mentioned in subsection (2) of section forty-two of the Local Government Act, 1933, any reference in this Act to the council of a county district shall be construed as a reference to the council by whom the affairs of the district are being temporarily administered.

(3) The references in sections sixteen and seventeen of this Act to a fire authority shall include references to any parish authority whose functions in connection with the extinction of fires and the protection of life and property in case of fire have not ceased to be exercisable by them.

(4) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment including this Act.

Short title,
extent and
repeals.

30.—(1) This Act may be cited as the Fire Brigades Act, 1938.

(2) This Act shall not extend to Northern Ireland.

(3) The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule and there shall

also be repealed so much of any enactment as incorporates or applies, with or without modifications, section one hundred and twenty-four of the Towns Improvement Clauses Act, 1847, or section thirty-two or section thirty-three of the Town Police Clauses Act, 1847 :

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Provided that—

- (a) the repeal of the enactments mentioned in Part II of the said Schedule and of any enactment incorporating or applying, with or without modifications, section thirty-three of the Town Police Clauses Act, 1847, shall not take effect until the expiration of a period of two years from the passing of this Act ; and
- (b) the repeal of such of the enactments mentioned in the said Schedule as relate to the functions of parish authorities shall not take effect, as respects any such authority, until those functions cease to be exercisable by that authority.

A.D. 1938.

SCHEDULE S.

Section 8.

FIRST SCHEDULE.

**CONSTITUTION AND PROCEEDINGS OF FIRE SERVICE
COMMISSION.**

1. The Fire Service Commission shall consist of a chairman and not less than three nor more than five other members appointed by the Secretary of State, who shall hold office for such term and on such conditions as to retirement as may be determined by the Secretary of State.

2. The Secretary of State shall appoint a secretary or secretaries to the Fire Service Commission; and there shall be paid to the chairman, members and secretary or secretaries such remuneration and such travelling and other allowances as the Secretary of State may with the consent of the Treasury determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Secretary of State incurred for the purposes of this Act.

3. The proceedings of the Fire Service Commission shall not be invalidated by reason of any vacancy in the Commission or by any defect in the appointment of any member, and subject to any directions which may be given by the Secretary of State, the Fire Service Commission shall have power to regulate its own quorum and procedure.

Section 11.

SECOND SCHEDULE.

**CONSTITUTION, PROCEEDINGS AND DISSOLUTION OF FIRE
SERVICE BOARDS.**

1. A fire service board shall consist of a chairman appointed by the Secretary of State and such other members as may be so appointed, and shall be a body corporate by the name of the Fire Service Board together with the name of the area for which it is constituted, and shall have a common seal and power to hold land without licence in mortmain.

2. The chairman and members of a fire service board shall hold office for such term and on such conditions as to retirement as may be determined by the Secretary of State.

3. The Secretary of State shall appoint a secretary to the board, and the board may, with the approval of the Secretary of State, appoint such other officers and servants as they may require for the execution of their duties.

A.D. 1938.

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2ND SCH.
—cont.

4. There shall be paid to the chairman, members, secretary, officers and servants of a fire service board such remuneration and such travelling and other allowances as the Secretary of State may with the consent of the Treasury determine, and all such remuneration and allowances, except so far as they are attributable to the exercise of functions transferred to the board from a defaulting authority under section thirteen of this Act, shall be defrayed as part of the expenses of the Secretary of State incurred for the purposes of this Act.

5. A fire service board may enter into such agreements, acquire, deal with, and dispose of such property, and do such things, as may in their opinion be necessary or desirable for the execution of their duties.

6. The proceedings of a fire service board shall not be invalidated by reason of any vacancy in the board or by any defect in the appointment of any member, and, subject to any directions which may be given by the Secretary of State, a fire service board shall have power to regulate its own quorum and procedure.

7. The accounts of a fire service board shall be subject to audit by a district auditor.

8. The Secretary of State may by order dissolve a fire service board and provide for the winding-up of the board.

A.D. 1938.

THIRD SCHEDULE.

Sections
5 & 30.

ENACTMENTS REPEALED.

PART I.

ENACTMENTS REPEALED AS FROM THE PASSING OF THIS ACT.

Session and Chapter.	Short Title.	Extent of Repeal.
3 & 4 Will. 4. c. 90.	The Lighting and Watching Act, 1833.	Section forty-four.
10 & 11 Vict. c. 34.	The Towns Improvement Clauses Act, 1847.	Section one hundred and twenty-four.
10 & 11 Vict. c. 89.	The Town Police Clauses Act, 1847.	Section thirty-two.
10 & 11 Vict. c. cclxxxiv.	An Act to purchase and define the manorial and market rights of Stockport, to establish public parks, to purchase or lease waterworks, to build bridges and to make other communications within the borough of Stockport.	Section twenty-three.
25 & 26 Vict. c. cciii.	The Aberdeen Police and Waterworks Act, 1862.	Sections one hundred and forty-nine to one hundred and fifty-one, sections one hundred and fifty-three to one hundred and fifty-six and section one hundred and fifty-eight so far as relating to fires within the limits of the Act.
25 & 26 Vict. c. ccv.	The Salford Improvement Act, 1862.	Section two hundred and seventy-four, so far as it relates to payments by owners of property.
28 & 29 Vict. c. ccl.	The Newcastle-upon-Tyne Improvement Act, 1865.	Section one hundred and one.
29 & 30 Vict. c. xxix.	The Manchester Town Hall and Improvement Act, 1866.	Section twenty.
29 & 30 Vict. c. li.	The Tynemouth Improvement Act, 1866.	Section forty-five.

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3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
29 & 30 Vict. c. cclxxiii.	The Glasgow Police Act, 1866.	Sections one hundred and fifty-eight to one hundred and sixty-one, sections one hundred and sixty-three to one hundred and sixty-six and section one hundred and sixty-eight so far as relating to fires within the city.
30 & 31 Vict. c. 106.	The Poor Law Amendment Act, 1867.	Section twenty-nine.
33 & 34 Vict. c. cxx.	The Newcastle-upon-Tyne Improvement Act, 1870.	Section one hundred and four.
38 & 39 Vict. c. 55.	The Public Health Act, 1875.	Section sixty-six, in section one hundred and sixty-three, the words " fire engines hose," and paragraph (2) of section one hundred and seventy-one so far as it incorporates section thirty-two of the Town Police Clauses Act, 1847.
45 & 46 Vict. c. clxxxv.	The Dundee Police and Improvement Consolidation Act, 1882.	Section two hundred and thirty-five in so far as it incorporates the provisions of section three hundred and forty-five of the General Police and Improvement (Scotland) Act, 1862, relating to the expenses of extinguishing fires or of section three hundred and forty-six of that Act, and sections two hundred and thirty-six to two hundred and thirty-nine and section two hundred and forty-two.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Section two hundred and ninety in so far as relating to the expenses of extinguishing fires; sections two hundred and ninety-one to two hundred and ninety-five and section two hundred and ninety-nine.
56 & 57 Vict. c. 10.	The Police Act, 1893	Section two.

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3RD SCH.

—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
56 & 57 Vict. c. 73.	The Local Government Act, 1894.	In sub-paragraph (ii) of paragraph (c) of subsection (1) of section six, the words "and of a fire engine, fire escape".
58 & 59 Vict. c. cxliii.	The Glasgow Corporation and Police Act, 1895.	Section thirty.
61 & 62 Vict. c. 38.	The Parish Fire-engines Act, 1898.	The whole Act.
7 Edw. 7. c. 53	The Public Health Acts Amendment Act, 1907.	Sections eighty-seven to ninety.
7 Edw. 7. c. lxii.	The Dundee Corporation Order Confirmation Act, 1907.	Section seventy-nine of the Order contained in the Schedule.
8 Edw. 7. c. 62	The Local Government (Scotland) Act, 1908.	Section eight except subsections (4) and (5).
9 Edw. 7. c. cxxix.	The Greenock Corporation Act, 1909.	Sections three hundred and seventy-seven to three hundred and seventy-nine, sections three hundred and eighty-one, and three hundred and eighty-two, and section three hundred and eighty-four except in so far as relating to section two hundred and ninety-eight of the Burgh Police (Scotland) Act, 1892.
15 & 16 Geo. 5. c. 71.	The Public Health Act, 1925.	Section fifteen.
20 & 21 Geo. 5. c. clxxvii.	The Glasgow Corporation Act, 1930.	Section thirty-nine in so far as it relates to section one hundred and sixty-six of the Glasgow Police Act, 1866.
22 & 23 Geo. 5. c. xlvi.	The Dundee Corporation Order Confirmation Act, 1932.	Section forty-nine of the Order contained in the Schedule in so far as it relates to section three hundred and forty-six of the General Police and Improvement (Scotland) Act, 1862, or to section two hundred and forty-two of the Dundee Police and Improvement Consolidation Act, 1882.

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3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
24 Geo. 5. c. v.	The Edinburgh Corporation Order Confirmation Act, 1933.	Sections one hundred and thirty-four to one hundred and thirty-eight and subsection (2) of section one hundred and forty of the Order contained in the Schedule.
25 Geo. 5. c. ii.	The Aberdeen Corporation Order Confirmation Act, 1934.	Section one hundred and twenty-four of the Order contained in the Schedule in so far as it relates to section one hundred and fifty-six of the Aberdeen Police and Waterworks Act, 1862.

PART II.

ENACTMENTS REPEALED AS FROM TWO YEARS AFTER THE
PASSING OF THIS ACT.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Vict. c. 89.	The Town Police Clauses Act, 1847.	Section thirty-three.
25 & 26 Vict. c. cciii.	The Aberdeen Police and Waterworks Act, 1862.	Section one hundred and fifty-seven, and section one hundred and fifty-eight so far as relating to fires beyond the limits of the Act.
25 & 26 Vict. c. ccv.	The Salford Improvement Act, 1862.	Section two hundred and seventy-three.
28 & 29 Vict. c. 90.	The Metropolitan Fire Brigade Act, 1865.	In section thirty the words from "In such case" to "summary manner".
29 & 30 Vict. c. li.	The Tynemouth Improvement Act, 1866.	Section forty-six.

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3RD SCH.,
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
29 & 30 Vict. c. cclxxiii.	The Glasgow Police Act, 1866.	Section one hundred and sixty-seven, and section one hundred and sixty-eight so far as relating to fires beyond the City.
38 & 39 Vict. c. 55.	The Public Health Act, 1875.	Paragraph (2) of section one hundred and seventy-one so far as it incorporates section thirty-three of the Town Police Clauses Act, 1847.
45 & 46 Vict. c. clxxxv.	The Dundee Police and Improvement Consolidation Act, 1882.	Section two hundred and thirty-five in so far as it incorporates section three hundred and forty-seven of the General Police and Improvement (Scotland) Act, 1862.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Section two hundred and ninety-eight.
8 Edw. 7. c. 62	The Local Government (Scotland) Act, 1908.	Subsections (4) and (5) of section eight.
9 Edw. 7. c. cxxix.	The Greenock Corporation Act, 1909.	Section three hundred and eighty-four in so far as relating to section two hundred and ninety-eight of the Burgh Police (Scotland) Act, 1892.
20 & 21 Geo. 5. c. clxxvii.	The Glasgow Corporation Act, 1930.	Section thirty-nine in so far as it relates to sections one hundred and sixty-seven and one hundred and sixty-eight of the Glasgow Police Act, 1866.
22 & 23 Geo. 5. c. xlv.	The Dundee Corporation Order Confirmation Act, 1932.	Section forty-nine of the Order contained in the Schedule in so far as it relates to section three hundred and forty-seven of the General Police and Improvement (Scotland) Act, 1862.
24 & 25 Geo. 5. c. v.	The Edinburgh Corporation Order Confirmation Act, 1933.	Subsections (1) and (3) of section one hundred and forty of the Order contained in the Schedule.

Session and Chapter.	Short Title.	Extent of Repeal.
25 & 26 Geo. 5. c. ii.	The Aberdeen Corporation Order Confirmation Act, 1934.	Section one hundred and twenty-four of the Order contained in the Schedule in so far as it relates to sections one hundred and fifty-seven and one hundred and fifty-eight of the Aberdeen Police and Waterworks Act, 1862.

A.D. 1938.

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3RD SCH.
—cont.

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